

		Moving party to give notice.
106	Le v. CUIAB, 2026-01538470	PETITION FOR WRIT OF MANDATE Petitioner has filed a petition for writ of administrative mandate. No proof of service on the respondent is on file. Petitioner should be prepared to advise the court when and how service was effected, or why it has not been effected.
107	Lee v. Fountain Valley, 2023-01358010	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION – GRANTED as to the second and third causes of action; no tentative ruling as to the first cause of action. Plaintiff Hye Jin Lee is a Korean-American woman who was hired by the City of Fullerton (the City) on March 9, 2020 as the Director of Public Works. (Undisputed Fact (UF) 1.) City Manager Maggie Le terminated Plaintiff's employment on May 10, 2023 (UF 69) Plaintiff sued the City for Racial Discrimination, Age Discrimination, and Gender Discrimination in violation of the Fair Employment Housing Act ("FEHA", Gov. Code, § 12940 et seq.) (Although the caption of Plaintiff's second amended complaint (SAC) lists a fourth cause of action for wrongful termination, no such cause of action is separately stated.) The City filed a motion for summary judgment and/or adjudication arguing (1) it had legitimate nondiscriminatory reasons for terminating Plaintiff's employment that were not pretextual, (2) there was no temporal proximity between the City's employees' comments and the termination of Plaintiff's employment, (3) plaintiff cannot show she was replaced by a significantly younger person, and (4) Plaintiff cannot establish evidence of a discriminatory motive as to the gender discrimination claim. Plaintiff filed an opposition brief, and the City filed a reply brief. <u>I. Burden on Summary Judgment in Employment Law Cases</u>